CONTRACT

between

John Benjamins Publishing Company, P.O. Box 36224, NL-1020 ME Amsterdam, The Netherlands, hereinafter called "Publisher",

and

Charlie Nagle

Joseph V. Casillas

[address(es) as listed in the Appendix to this Agreement], hereinafter called "Author",

with respect to the Work provisionally entitled:

"Forking Paths, Open Doors:

Designing transparent and reproducible quantitative studies in applied linguistics"

hereinafter referred to as the "Work", to be published in the series

"Research Methods in Applied Linguistics"

Article I
The Author warrants that he or she is the sole owner of the Work and of the rights herein granted; that the Work is original to the Author; that the Work has not been previously published; that the Work is not under consideration with other publishers; and that the Work is in no way whatever a violation or an infringement of any existing copyright or license.

Article II
The Author hereby assigns and transfers to the Publisher the entire copyright in the Work to the maximum extent possible, throughout the world, including:
- the exclusive right to publish, sell, and distribute the Work;
- the exclusive right in all renditions and media and any other commercial use of the Work existing or hereafter to come into existence;
- all subsidiary and translation rights, including but not limited to the right to make derivative works, adaptations, abridgements, or translations, and to license and authorize third parties to do so.

Article III

a. The Author shall indemnify and keep the Publisher indemnified against all actions, suits, proceedings, claims, demands and costs occasioned to the Publisher in consequence of any breach of the warranty in Article I of this Agreement, or arising out of any claim alleging that the Work constitutes in any way a breach of the warranty as described in this Agreement.
b. Should the text of the Work contain extracts and/or illustrations from other copyrighted works, the Author, as far as necessary outside the scope of fair use and other copyright exemptions, shall obtain from owners of the respective copyrights, and shall file with the Publisher written permission to reproduce such extracts in the Work in all territories and editions and in all forms which are the subject of this Agreement, at the expense of the Author unless otherwise agreed in the Appendix of this Agreement.

Article IV

a. The Author commits to supply the final definite version of the Manuscript as agreed in the Appendix to this Agreement.
b. This Agreement may be considered null and void by the Publisher if after a period of 1 year from the submission date as agreed in the Appendix, the final and definitive version of the manuscript has not been submitted, unless the later delivery has been mutually agreed to in writing.

Article V

a. If this Agreement is signed before the completion of the Manuscript of the Work, the Publisher reserves the right not to publish the Work, if in the opinion of the Publisher, Series Editor or Publisher's advisor, the Work is not of the extent, character or standard which have been agreed to or might reasonably be expected.
b. The Publisher will have the right as a condition of acceptance of the Work to require amendments to ensure that the Work does conform to the specifications that have been agreed.
c. The Publisher will, unless otherwise mutually agreed to, or unless prevented by circumstances beyond the Publisher's control, and subject to receipt of the Manuscript in a condition satisfactory and acceptable to the Publisher as to form and substance, produce and publish the Work at the Publisher's own expense.
d. The Publisher commits to publish the Work within a period of 3 months from the date that the final proofs or the camera-ready copy have been approved for printing.

Article VI

The negotiation of and final agreement to terms for the exploitation of subsidiary rights granted under this Agreement to third parties shall be in control of the Publisher who shall wherever practicable consult the Author. See also Articles II and X(c).

Article VII

a. The Publisher will determine the list price of the Work.
b. The Publisher and the Author may propose updates to the Work. Both parties will consider this possibility and decide in mutual consultation about any future plans for an update of the Work.
c. If the Publisher should decide to discontinue publication of the Work, in any edition issued or licensed by the Publisher, and if there is no agreement in existence between

the Publisher and a third party for such publication of a sub-licensed edition within a reasonable period, then the Author may notify the Publisher in writing to reissue the Work within twelve months. In the event of the Publisher's failure to do so, a possible transfer of rights from the Publisher to the Author can be negotiated.

Article VIII

a. Sales and marketing of the Work shall be conducted as deemed appropriate by the Publisher.
b. A reasonable number of copies of the Work will be available for review and other promotional purposes.

Article IX

a. The Work will be published in a manner and style appropriate to market expectations.
b. The Publisher will ensure high quality production of the Work.

Article X

a. The Author will receive a royalty over the net sales of the Work as agreed in the Appendix to this Agreement.
b. Yearly, before the end of June, the Publisher will settle the royalties due on the sales in the preceding calendar year. Before transfer of the royalties to the Author's account the Publisher will accumulate the royalties until these reach the minimum amount of EUR 50. Royalties will be transferred to a single account only.
c. The Author receives 25% of the net proceeds from the exploitation of subsidiary rights, including translations or licensed editions of the Work, granted under this Agreement to third parties.

Article XI

The Author may purchase copies of the published Work at a discount of 50% off the list price, as well as titles from the Publisher's current list at a discount of 30% off the list price. These copies will be for the Author's own use and not for re-sale.

Article XII

a. The Author shall be entitled to use material from the published Work in articles submitted to learned or professional journals, or in papers presented for professional purposes, provided that the Author shall make appropriate acknowledgement of the Work and the Publisher.
b. The Author shall not without the written consent of the Publisher prepare, publish, collaborate, or authorize the use of the Author's name with respect to any work that in the reasonable view of the Publisher might compete or interfere with the sale or other commercial exploitation of the Work.

Article XIII

This Agreement shall be binding upon and shall enure to the benefit of the Author and the Author's personal representatives, heirs, and assigns. The Publisher shall not assign this Agreement without the consent of the Author, except that no consent shall be required if such assignment is made in connection with the transfer of all or a substantial part of the Publisher's business.

Article XIV

a. This Agreement contains the full and complete understanding of the parties hereto, and no modification of this Agreement shall be effective unless in writing and signed by both parties.
b. Nothing in this Agreement shall be deemed to create any employer/employee, agency, fiduciary, joint venture, or other similar relationship between the Publisher and the Author.
c. Any notice relating to this Agreement shall be sent by registered mail.
d. If the Publisher incurs bankruptcy, the Author has the right to terminate this Agreement immediately by registered mail.

Article XV

This Agreement is governed by the laws and regulations of the Kingdom of the Netherlands, and any disagreement or legal action arising from this Agreement shall be settled in and by the laws and regulations of the Kingdom of the Netherlands.

Appendix

See page 5.

APPENDIX
to the Agreement

between

John Benjamins Publishing Company

and

Charlie Nagle; University of Texas at Austin; Department of Spanish and Portuguese; 150 W 21st Street; AUSTIN TX 78712; USA and **Joseph V. Casillas**; Department of Spanish and Portuguese; School of Arts and Sciences; Academic Building-CAC; Rutgers University; 15 Seminary Place; NEW BRUNSWICK NJ 08901; USA

hereafter referred to as 'Author'.

Referring to Article II:

The Publisher commits to publish the Work in a hardbound and a paperback edition.

The Publisher will publish the Work simultaneously in an electronic edition.

Referring to Article IV(a):

The Author commits to supply the final and definite version of the Manuscript in electronic form, prepared according to the Publisher's guidelines and instructions, on or prior to 01 November 2027.

The Publisher will take care of the typesetting of the Work, while the Author agrees to proofreading and returning the proofs, 1st and 2nd, without delay.

The Author warrants that the length of the Work shall be between 200 and 350 typeset pages.

The Author warrants that a subject index will be provided to the Work, and if relevant a name index, prepared according to guidelines supplied by the Publisher.

Referring to Article X:

The Author will receive a royalty of 10% over the net sales of the hardbound and electronic editions starting from copy no. 201 sold of the total of these editions.

The Author will receive a royalty of 10% over the net sales of the paperback edition starting from copy no. 301 sold.

The Author is entitled to 6 free copies of the Work upon publication.

Amsterdam, 22 May 2025 Place, Date _____

The Publisher The Author

